

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 09/14/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHlIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHlIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00904

CASE NAME: P. D. VS. DOE 1

*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS

FILED BY: COUNTY OF CONTRA COSTA

TENTATIVE RULING:

Introduction

Before the Court is Defendant County of Contra Costa's Motion for Judgment on the Pleadings (MJOP). The MJOP relates to Plaintiff P.D.'s First Amended Complaint (FAC) filed on May 20, 2022, for a single negligence cause of action against the County of Contra Costa.

Defendant County of Contra Costa moves for judgment on the pleadings on the grounds that discretionary immunity under Government Code sections 820.2 and 815.2(b) bar Plaintiff's negligence claim against the County.

For the following reasons, Defendant Contra Costa County's MJOP is **GRANTED with leave to amend.**

Meet and Confer Requirement

Defendant satisfies their meet and confer requirements for their MJOP in detailing their efforts in reaching out and speaking to Plaintiff's counsel on April 10, 2026, but the parties were unable to resolve the outstanding issues. (McCord Decl. ¶¶ 3-4.)

Factual Background

Plaintiff's FAC makes the following allegations.

In approximately 1969, when Plaintiff was about seven years old, the County placed Plaintiff in Edgar Children's Shelter group foster home, located in Contra Costa County. (FAC ¶ 24.) The Group Home was approved, licensed, trained, supervised, and/or compensated by the County. (Id.) In that same year, Plaintiff was sexually abused and assaulted by an older resident of the Group Home (the "Perpetrator"). The Perpetrator abused Plaintiff multiple times over an approximate six-month period. (FAC ¶ 25.)

While the abuse was ongoing, Plaintiff reported the abuse on separate occasions to several different Group Home employees. (FAC ¶ 28.) Plaintiff additionally disclosed that he was being sexually abused and/or assaulted to his caseworker, Nina Rosen, an employee and/or agent of the County. (FAC ¶ 29.) During Plaintiff's check-ins with the juvenile court, Plaintiff would scream and cry that he was afraid of the Group Home, felt unsafe there, and did not want to go back. (FAC ¶ 30.) Despite the foregoing, "no action was taken, no investigation was completed, and Perpetrator continued to sexually abuse and/or assault Plaintiff." (FAC ¶¶ 30-31.)

The County was in a special relationship of in loco parentis or caregiver-child with Plaintiff throughout his placement in the Group Home, in which the County owed Plaintiff a duty of reasonable care to protect him from foreseeable harm. (FAC ¶ 19.) The FAC asserts a negligence cause of action against the County, based upon, inter alia, the County's failure to protect Plaintiff from sexual abuse, sexual assault and lewd and lascivious acts; failure to adequately, properly and completely investigate whether Plaintiff was safe and free from maltreatment; failure to adequately, properly and completely investigate the acts and conduct of Perpetrator; failure to establish and to implement and enforce policies and procedures adequate to protect the health, safety and welfare of foster children; failure to adequately monitor and supervise Plaintiff; failure to adequately hire and train employees, agents and case workers; concealment of the County's knowledge that Perpetrator was unsafe and posed a risk of child sexual abuse; and failure to report suspected sexual abuse of a minor to law enforcement. (FAC ¶ 46 [citing Cal. Welf. & Inst. Code §§ 328, 16501(f), 16504; Cal. Health & Safety Code § 1522, et seq.; Cal. Pen. Code §§ 11165.7, 11165.9 and 11166; Dept. of Soc. Svcs. Child Welf. Svcs. Manual §§ 31-320, 31-401, et seq., and 31-501].)

Legal Standard

A motion for judgment on the pleadings has the same function as a demurrer and the rules governing demurrers generally apply. (*Cloud v. Northrup Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; *Weil & Brown, et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) ("Weil & Brown") § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action.

(*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, § 7:295.)

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Negligence Against a Public Entity

To state a cause of action for negligence, a plaintiff must plead (1) defendant’s legal duty of care to plaintiff; (2) breach of that duty; (3) injury proximately caused by that duty; and (4) damages to plaintiff. (*Williams v. Bechnut Nutrition Corp.* (1986) 185 Cal. App. 3d at 141.) Where a public entity is sued, the basis for its liability for negligence can be either California Government Code Sections 815.2 and 815.4, which provide that public entities can be vicariously liable for injuries caused by the acts or omissions of their employees and/or independent contractors, or Section 815.6, which provides that public entities can be directly liable for negligence where they fail to discharge mandatory duties: “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge that duty.” (Cal. Govt Code § 815.6.) An enactment for purposes of section 815.6 may include both formal legislative measures, such as statutes, and quasi-legislative measures, such as regulations adopted by state agencies. (See e.g., *Jacqueline T. v. Alameda County Child Protective Services* (2007) 155 Cal. App. 4th 456, 469.)

Duty

A defendant does not owe a legal duty to protect against third party conduct, unless there exists a special relationship between the defendant and the plaintiff. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.)

Special Relationship

Notably, “a typical setting for the recognition of a special relationship is where the plaintiff is particularly vulnerable and dependent upon the defendant who, correspondingly, has some control over the plaintiff’s welfare.” (*Regents of University of California v. Superior Court* (2018) 4 Cal.App.5th 607, 621 [internal quotations, citation omitted].) A special relationship arises in relationships involving “dependence or control,” in which individuals “by virtue of those relationships have reason to expect the defendant’s protection.” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.)

Here, Plaintiff “was wholly dependent upon the good offices of the County to supervise [his] placement.” (*Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th 887, 895.) As alleged in the FAC, Plaintiff was a child in the County’s custody when the County placed Plaintiff in the Group Home, where his County-assigned caseworker, Nina Rosen, supervised his placement. (FAC ¶¶ 24, 29.)

Plaintiff has sufficiency alleged a basis for a special relationship existed between Defendant Contra Costa County and Plaintiff, a dependent child in foster care.

Discretionary Immunity

The decision to apply discretionary act immunity requires a two-part analysis. (*D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, 473.) First, we decide whether the decision at issue is a discretionary, as opposed to a ministerial one. (*Id.*) Decisions of child welfare agency employees—regarding determinations of child abuse, the potential risk to a child, placement of a child, removal of a child, and other resultant actions—are subjective *discretionary* ones that are incidental to the employees' investigations. (*B.H. v. County of San Bernardino* (2015) 62 Cal.4th 168, 191–92.)

The second part of the discretionary act immunity analysis is whether the employee who made the decision at issue “actually reached a considered decision knowingly and deliberately encountering the risks that give rise to plaintiffs complaint. ... [¶] ... [T]o be entitled to immunity the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place. The fact that an employee normally engages in ‘discretionary activity’ is irrelevant if, in a given case, the employee did not render a considered decision.” (*D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, 473–474; citing *Johnson v. State of California* (1968) 69 Cal.2d 782, 794–795, fn. 8.) In *Caldwell v. Montoya* (1995) 10 Cal.4th 972, the California Supreme Court applied the same test: “*Johnson* precludes a finding of immunity solely on grounds that ‘the [affected] employee's *general course of duties* is “discretionary” ... and requires a showing that ‘the specific conduct giving rise to the suit’ involved an *actual* exercise of discretion, i.e., a ‘[conscious] balancing [of] risks and advantages.’” (*Caldwell v. Montoya* (1995) 10 Cal.4th 972, 983.)

In *K.C. v. County of Merced*, the Court of Appeal addressed the application of discretionary immunity to acts of a social worker on demurrer. (*K.C. v. County of Merced* (2025) 109 Cal.App.5th 606, 619–20.) In *K.C.*, as here, the plaintiff alleged that she was (1) sexually assaulted in county foster care placements, (2) put the county on notice by reporting the abuse to social workers, and (3) no investigative or corrective action was taken. (*Id.* at 610–12.) The court concluded that a social worker’s decisions relating to “the investigation of child abuse” and discontinuation of a foster home placement “based upon suspicion of abuse” not only “involve[] the exercise of analysis and judgment as to what is just and proper under the circumstances” but also constitute “sensitive policy decision[s] that require[] judicial abstention to avoid affecting a coordinate governmental entity’s decision-making or planning process” (*Id.* at 617.) Defendant argues that *KC* should govern because the facts are almost identical to the current facts and that this Court should also sustain the pleading challenge without leave to amend.

However, there is a major distinction between *K.C.* and the present facts. In *K.C.* the court does not address any allegations of mandatory duties. By definition the mandatory duties that Plaintiff alleges in their FAC cannot be affected by discretionary immunity.

Mandatory Duty Exception to Immunity

To qualify for Government Code section 815.6's mandatory legal duty exception to Government Code section 815's immunity rule, a plaintiff must establish (1) the existence of an enactment that imposes a mandatory, not discretionary, duty on the public entity and (2) that the enactment is intended to protect against the particular kind of injury the plaintiff suffered. (*Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498–499.) A mandatory duty is one that is obligatory and requires a specific course of conduct. (*B.H. v. County of San Bernardino* (2015) 62 Cal.4th 168, 180.)

Defendant points out that several of the statutes and regulations identified in the FAC postdate the alleged conduct or are cited in versions that were not in effect during the relevant period. These include Welfare and Institutions Code sections 328, 16501, subdivision (f), and 16504; Health and Safety Code section 1522; Penal Code sections 11165.7, 11165.9, and 11166; and provisions of the Department of Social Services Manual. (FAC ¶¶ 21, 57.)

Plaintiff alleges that the relevant conduct occurred beginning in approximately 1969. (FAC ¶¶ 24–25.) The issue is therefore whether the law in effect at that time imposed the specific duties Plaintiff alleges were breached, not whether those duties exist under later enacted statutes and regulations. Thus, the Court must grant the MJOP but the Court will grant Plaintiff leave to amend to allege enactments that applied at the time of the alleged injury and to plead the correlating mandatory duties in their amended pleading.

Conclusion

For the reasons analyzed above, Defendant Contra Costa County’s MJOP is **GRANTED with leave to amend.**

2. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT AGAINST DAN HARKINS**
INDIVIDUALLY AND AS RECEIVER
FILED BY: CAFIERO, DEAN
***TENTATIVE RULING**

On the Court's own motion, the hearing is continued to 9:00 a.m. on October 5, 2026.

3. 9:00 AM CASE NUMBER: C24-01318
CASE NAME: DAMIAN MCKENNA VS. HOMESITE INSURANCE COMPANY OF CALIFORNIA
MOTION TO BE RELIEVED AS COUNSEL AS TO DEF WHAT'S GOOD FOR YOUR SOUL
FILED BY:
TENTATIVE RULING:

Gerald J. Beaudoin (“Counsel”) filed a Motion to be Relieved as Counsel on August 5, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on September 14, 2026. The motion is unopposed.

Background

Counsel seeks to be relieved as attorneys for defendant What's Good for Your Soul, LLC (the “Client”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship, including as a result of a disagreement over the handling of the case and financial arrangements with Counsel. See Declaration filed August 5, 2026, ¶12. The Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.